

1 IN THE DISTRICT COURT OF JOHNSON COUNTY, KANSAS
2 CRIMINAL DEPARTMENT
3

4 STATE OF KANSAS,

5 Plaintiff,

6 vs.

Case No. 10CR2633

Appellate No.: 13-109787-A

7 SCOTT P. MOORE,

8 Defendant.
9

10 TRANSCRIPT OF JURY TRIAL PROCEEDINGS
11 (Day 2, Volume II)

12 PROCEEDINGS HAD before the HONORABLE BRENDA CAMERON,
13 Judge of Court 13 of the Tenth Judicial District of the State
14 of Kansas at Olathe, Kansas, and a jury of six, January 14th
15 through 16th, 2013.

16 APPEARANCES:

17 The Plaintiff appeared by Ms. Erika Rasmussen and Ms.
18 Heather Jones, Assistant District Attorneys, Office of the
19 District Attorney, Johnson County Courthouse, 100 N. Kansas
20 Avenue, Olathe, Kansas.

21 The Defendant appeared in person and by Mr. Kevin E. J.
22 Regan from The Regan Law Firm, 1821 Wyandotte, Suite 200,
23 Kansas City, Missouri.
24

25 REPORTED BY GLORIA J. O'MALLEY, CSR, CCR

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* * * * * P R O C E E D I N G S * * * * *

(Whereupon, the jury entered the courtroom
and proceedings began at 9:03 a.m.)

THE COURT: The Court will call this
morning State of Kansas versus Scott Moore, 10CR2633.

MS. RASMUSSEN: May it please the Court,
the State of Kansas appears by Erika Rasmussen and Heather
Jones.

MR. REGAN: Good morning, Your Honor,
ladies and gentlemen of the jury, once again, Mr. Moore
appears with counsel, Kevin Regan.

THE COURT: We are on the record, the jury
is in place. We are ready for day two of the jury trial.

For the record, Counsel, we did have a call, one of our
jurors, Mr. Porter, who is in spot number three, and he is ill
and unable to be here. So, Mr. Giffen, I'm glad you're here.
No one can get sick. We're going to finish this. Mr. Giffen
has taken the place of Mr. Porter. We're ready for further
presentation of evidence by the State. Ms. Rasmussen.

MS. RASMUSSEN: Your Honor, the State calls
Detective Marcus Fizer.

1 **MARCUS FIZER,**
2 **having been duly sworn to tell the truth, the whole truth and**
3 **nothing but the truth, testified as follows:**

4 **DIRECT EXAMINATION**

5 **BY MS. RASMUSSEN:**

6 Q. What is your name?

7 A. Marcus Fizer.

8 Q. Where do you work?

9 A. The City of Overland Park, Kansas.

10 Q. What do you do for the City of Overland Park?

11 A. I'm a detective.

12 Q. How long have you been assigned there in the
13 Detective Unit there, I'm sorry?

14 A. I'm going on nine years, ten years.

15 Q. Okay. How long have you been a law enforcement
16 officer?

17 A. Since August of 2000.

18 Q. Do you have any specialized training, or do you
19 have a specific assignment as a detective?

20 A. Yes, I do.

21 Q. What is that?

22 A. I'm assigned to our Special Victims Unit. We
23 handle all investigations involving sex crimes and crimes
24 against children.

25 Q. And do you have any other training or special

1 assignments within Overland Park or other agencies?

2 A. Yes, I do.

3 Q. What is that?

4 A. I've been assigned to the FBI's Child Cyber Crimes
5 and Child Exploitation Task Force since 2007.

6 Q. I want to go to May 2010. Were you working for
7 the Overland Park Police Department then?

8 A. Yes, I was.

9 Q. Were you assigned to investigate a report
10 involving Scott Moore?

11 A. Yes, I was.

12 Q. What was the first thing that you did when you
13 were assigned to investigate that report?

14 A. Review the report.

15 Q. And that would have been the report done by the
16 patrol officer?

17 A. Yes, Officer Beatty.

18 Q. What's the next thing you did?

19 A. Contact the victim's family and kind of explain
20 the process of investigation to them, and scheduled them for
21 an interview.

22 Q. Do you know what date the report was originally
23 made?

24 A. I believe it was the 17th.

25 Q. What date did you contact the family?

1 A. The 20th.

2 Q. What was one of your purposes of contacting the
3 family?

4 A. To schedule Nick for a Sunflower House forensic
5 interview.

6 Q. All right. When you receive a report of this
7 nature where there is an alleged victim under the age of 18,
8 do you usually interview the child yourself?

9 A. Not usually.

10 Q. What do you do?

11 A. We refer them to the Child Advocacy Center
12 Sunflower House where an interview is conducted.

13 Q. And they specialize in interviewing children?

14 A. Yes, they do.

15 Q. Do they just interview children related to crimes
16 that the Overland Park Police are investigating or other
17 areas?

18 A. They service Johnson and Wyandotte Counties.

19 Q. And is it easy to get a quick interview with a
20 child scheduled there?

21 A. No.

22 Q. What date was the interview scheduled for?

23 A. May 27th.

24 Q. Did you attend that interview?

25 A. Yes, I did.

1 Q. And were you in the interview room or watching the
2 interview in any way?

3 A. I watched the interview from an observation room.

4 Q. And while observing that, did you determine where
5 these acts reported by Nick occurred?

6 A. Yes.

7 Q. What was the location?

8 A. Scott Moore's residence.

9 Q. Where is that?

10 A. 15821 Horton Court, Overland Park, Kansas.

11 Q. That's here in Johnson County?

12 A. Yes, it is.

13 Q. Now, during his interview that the jury had an
14 opportunity to see, Nick mentioned that he saw a flash of
15 light before the touching occurred, and what sounded like a
16 camera flash?

17 A. Yes.

18 Q. Or what sounded like a camera, I'm sorry. Based
19 on this information, did you get a warrant to search the home
20 of Scott Moore?

21 A. No, I did not.

22 Q. Why not?

23 A. The victim reported that his eyes were closed and
24 couldn't articulate with any specificity what created the
25 flash of light, and I didn't have enough to articulate in the

1 warrant what exactly I would be searching for and/or seizing.

2 Q. Do you think it would be reasonable to attempt to
3 get a warrant to search the defendant's house for anything
4 making a flash of light?

5 A. I didn't think that was reasonable.

6 Q. Is there any other reason why you didn't attempt
7 to get a warrant for that item?

8 A. No. I mean, I was investigating a sexual battery,
9 not a flash of light.

10 Q. Now, did you attempt to collect Nick's clothing or
11 attempt to get a search warrant to search for DNA evidence in
12 the home?

13 A. No, I did not.

14 Q. Why not?

15 A. I would expect to find Nick's DNA in the home. He
16 reported to have been sleeping on the couch or laying on the
17 couch, so I would expect to find his DNA on the couch. I
18 would also expect to find Mr. Moore's DNA on his clothing if
19 he's sitting on a couch in Mr. Moore's home.

20 Q. Now, you didn't get a warrant for the Moore home,
21 but did you interview anyone else that Nick reported had been
22 there prior to the defendant being charged criminally?

23 A. Yes, I did.

24 Q. Who was that?

25 A. I interviewed Marcus Blanckensee.

1 Q. What was the date of that interview?

2 A. September 22nd.

3 Q. Just to make sure, that was in 2010?

4 A. Yes, 2010.

5 Q. Now, at the time of your investigation, were you
6 aware of prior allegations involving Scott Moore?

7 A. Yes, I was.

8 MR. REGAN: May we approach, please, Your
9 Honor?

10 THE COURT: Yes.

11 (Whereupon, the following proceedings were
12 held at the bench outside the presence of the jury.)

13 THE COURT: Okay.

14 MR. REGAN: Judge, it would appear at this
15 time that the prosecutor is trying to elicit testimony of the
16 60-455 evidence. In that regard, I renew my objection to that
17 type of testimony and ask the Court to reconsider my motion in
18 limine about this evidence. Because in my opinion, the
19 prejudicial effect far outweighs the probative value of this
20 evidence.

21 THE COURT: Any response?

22 MS. RASMUSSEN: Your Honor, the response is
23 what has been throughout this process.

24 THE COURT: The objection is noted. It's
25 been litigated and will be overruled. Thank you.

1 (Whereupon, the following proceedings were
2 held away from the bench in the presence of the jury.)

3 Q. (By Ms. Rasmussen) Now, Detective Fizer, you
4 indicated you were aware of prior allegations. After the case
5 was filed and you learned that evidence would be those prior
6 allegations would be admitted as evidence in this case, did
7 you contact some of the individuals involved in those
8 incidents?

9 A. Yes, I did.

10 Q. Who were those individuals?

11 A. Jordan Galbraith, Kyle Heslop and Collin Williams.

12 MS. RASMUSSEN: I have nothing further.

13 THE COURT: Cross-examination?

14 MR. REGAN: Yes, Your Honor.

15 **CROSS-EXAMINATION**

16 **BY MR. REGAN:**

17 Q. Good morning, Detective Fizer?

18 A. Good morning, sir.

19 Q. Your job is to detect clues in cases and present
20 them to the Prosecutor's Office; right?

21 A. I investigate crimes.

22 Q. Part of your investigation is to detect. That's
23 why you call yourself a detective?

24 A. Yes.

25 Q. And you want to find every clue you can and every

1 bit of evidence you can from a case before presenting it to
2 the District Attorney's Office; right?

3 A. It depends on the case. Some cases will come out
4 for review prior to completing every interview that's, you
5 know, desired, just for review or direction and consultation.

6 Q. When you present a case for final submission to
7 the District Attorney's Office here in Johnson County, isn't
8 it your desire to have every bit of evidence you can put
9 together from a case file to give to the DA to make a charging
10 decision?

11 A. That would be desirable, yes. But a case can be
12 up in investigation up until the point of trial.

13 Q. And isn't it true that when you're presenting a
14 case, you want to make sure you have as complete a picture as
15 possible to take to the District Attorney who is going to in
16 turn maybe charge a case and present it to a jury like these
17 folks?

18 A. Yes.

19 Q. All right. Let's talk about this Marcus Fizer
20 business. You got involved in the case in May of -- I'm
21 sorry, the Marcus Blanckensee business. You got involved in
22 the case in May 2010; right?

23 A. Right.

24 Q. And you were told in May 2010, Preston Moore was
25 in the room; right?

1 A. Yes.

2 Q. And you were told that Marcus Blanckensee was in
3 the room?

4 A. Yes.

5 Q. When Nick Koch says this happened, this stuff
6 happened; right?

7 A. Correct.

8 Q. Would it be fair to say that when you presented
9 the case to the Assistant District Attorney upstairs in this
10 building for his review, you had not interviewed Marcus
11 Blanckensee?

12 A. At that point I had not completed the interview
13 with Marcus Blanckensee, yes.

14 Q. But you knew he existed?

15 A. Yes.

16 Q. You've got a computer and punched up addresses and
17 went over and talked to them?

18 A. Yes.

19 Q. But you submitted the case for filing without
20 talking to the only witness in that room with no allegiance to
21 one side or the other?

22 A. I submitted it for review prior to the interview
23 of Marcus Blanckensee.

24 Q. It was only because I asked the DA to follow up on
25 this, that you were told by the DA, "Hey, go interview

1 Marcus."

2 You don't have to look at the prosecutor when I'm asking
3 you a question. You look at the Judge or the jury.

4 A. I was informed that Marcus Blanckensee had been
5 contacted and requested to go interview, yes.

6 Q. So after it was submitted?

7 A. Yes.

8 Q. You went back and talked to him; right?

9 A. Yes.

10 Q. And Marcus Blanckensee told you, "I didn't hear
11 nothing. I didn't see nothing. I was sitting across the room
12 from all this"?

13 A. He reported he was in the room but didn't see what
14 happened.

15 Q. All right. Now, you're a detective, and when you
16 detect clues at case scenes and alleged crime scenes, don't
17 you go out sometimes and take pictures and draw diagrams and
18 take measurements?

19 A. Depending on the case, yes.

20 Q. And you were told that Preston Moore was within
21 two or three feet of Mr. Koch when this supposedly happened in
22 a house full of people?

23 A. I don't know if I was told an approximation of
24 distance, but I know he was reported to be in the room.

25 Q. Is there a reason why you keep looking to the DA's

1 office when I'm asking you questions. They can't guide you
2 now.

3 MS. RASMUSSEN: Your Honor, may we
4 approach?

5 THE COURT: You may.

6 (Whereupon, the following proceedings were
7 held at the bench outside the presence of the jury.)

8 MS. RASMUSSEN: First off, Detective Fizer,
9 I don't even see him looking over at me.

10 Second of all, the reason is because Mr. Regan's
11 questions are getting along the line to where Detective Fizer
12 is going to be -- the victim didn't want to come in and speak
13 to him regarding the case because he didn't go out to the
14 house because he didn't have Mr. Moore's consent because Mr.
15 Regan contacted him and said my client is not talking to you.

16 THE COURT: I didn't understand that to be
17 the question, but do you have a response?

18 MR. REGAN: I don't believe that was my
19 question. My question was: Why does he keep looking at them?

20 MS. JONES: I think he's nervous about
21 saying something.

22 MR. REGAN: I don't intend to give him an
23 opening to go into my client's implication. I don't think the
24 question was allowing me to go there.

25 THE COURT: I didn't understand the

1 question to have anything to do with why this detective didn't
2 go to the house. It does certainly open the door to other
3 information. But at this point, the objection is overruled.

4 (Whereupon, the following proceedings were
5 held away from the bench in the presence of the jury.)

6 Q. (By Mr. Regan) In talking with Nick Koch, you
7 made no attempt to draw a diagram so a judge and jury and
8 prosecutor could understand who was sitting where and who was
9 laying where?

10 A. I didn't conduct an interview with Nick.

11 Q. You could have, if you wanted to; correct? You
12 could have conducted an interview with Nick Koch and say:
13 Hey, young man, why don't you draw me a diagram to see who was
14 where?

15 A. I didn't conduct an interview. I referred him to
16 the Sunflower House.

17 Q. But you could have conducted an interview and got
18 that information from him, if you wanted to?

19 A. I have the training to conduct forensic
20 interviews, yes.

21 Q. And as you sat there in the observation room of
22 the Sunflower House, you heard the kid say, "I heard and saw
23 the flash coming from the camera and that two pictures were
24 taken of me?"

25 A. I don't remember what his words were. Something

1 to that effect, yes.

2 Q. He described a fancy, black type of camera; right?

3 A. I don't recall that.

4 Q. Is it possible he said it and you don't remember
5 because it's been a while?

6 A. It's possible.

7 Q. Because the tape speaks for itself?

8 A. The interview speaks for itself.

9 Q. And you have the power to come to the prosecutor's
10 office and have them help you prepare an application for a
11 search warrant to go to the Moore home and get every camera in
12 that house?

13 A. We did have the power.

14 Q. And every computer image?

15 A. Yes.

16 Q. If someone is going to take pictures of young
17 boys, he's got to put them somewhere, right? He going to keep
18 them on the camera or on the computer?

19 A. I believe that calls for speculation.

20 Q. In cases you've investigated, that's what happens;
21 correct?

22 A. I've had cases where that's happened.

23 Q. And you chose not to, for whatever reason, to not
24 get a search warrant to get every camera in that house and
25 every computer?

1 A. I didn't feel it was reasonable.

2 Q. Who called in to your department initially, Nick
3 or his mother, Lori?

4 A. I believe they came to the station. I would have
5 to review Officer Beatty's initial report.

6 Q. Did the debriefing go something like this: They
7 told you, well, this bad stuff happened to me in May of 2010,
8 and by the way on further reflection something else happened
9 in Christmastime 2009 as well?

10 A. Yes.

11 Q. And did Lori bring to your attention, Lori Koch
12 that is, that it was rumored that things happened involving
13 Scott Moore in Linn County in 2005 and 2006?

14 A. She discussed that with me briefly, yes.

15 Q. Would you agree with me that the credibility of
16 witnesses that you're interviewing as you're presenting a case
17 to the prosecutor is an important fact to consider?

18 A. Ultimately important.

19 Q. Did you talk with folks at school about Nick's
20 credibility?

21 A. I did not.

22 Q. Did you talk to Preston or Marcus about his
23 credibility?

24 A. I did not.

25 Q. Did you check with the SRO at school, and by that

1 I mean the school resource officer, a fellow policeman?
2 A. No, I did not.
3 Q. Did you check his Facebook?
4 A. No, I did not.
5 Q. Or Internet social media?
6 A. No, I did not.
7 Q. But you were told by Nick there were three boys in
8 the family room, Nick, Preston and Marcus?
9 A. Yes.
10 Q. Were you told earlier that night that Mr. Moore
11 had taken another boy home one-on-one in a car setting?
12 A. I knew there were other friends of Preston's at
13 the function, yes.
14 Q. Were you told by Nick that upstairs, directly
15 above the supposed said occurrence, was where Mrs. Moore was
16 sleeping?
17 A. I think it was mentioned that she was in the home.
18 Q. And Kirsten Moore was asleep upstairs too?
19 A. Yes.
20 Q. So you were asked to believe that this grown man
21 did something inappropriate with this kid within two or three
22 feet of his son with his wife asleep upstairs?
23 A. Yes.
24 Q. Is it fair to say that you do not have any
25 physical evidence to corroborate the statement this boy?

1 A. I do not have physical evidence.

2 Q. Did you interview the boy that Mr. Moore took home
3 one-on-one to see if anything funny happened with him that
4 night?

5 A. No, I did not.

6 Q. Were you aware that from Preston and Nick, it was
7 closer from you to the front row of the jury rail here?

8 A. I don't know how close they all were.

9 Q. Were you aware that all these boys were closer
10 together than these jurors are right now?

11 A. No.

12 Q. And you chose to present two counts to the
13 prosecution, to the District Attorney's Office; correct?

14 A. I believe both incidents were mentioned in the
15 charging.

16 Q. Are you aware that Nick told the Sunflower House
17 in an interview that he was touched in a sexual way in
18 Christmas 2009?

19 A. Again, I don't remember what exactly he said in
20 his interview.

21 Q. And at some point in time you obtained the Linn
22 County reports; correct?

23 A. I reviewed some of the Linn County reports.

24 Q. You got what you could get your hands on?

25 A. Whatever was provided to me for review.

1 Q. And Linn County has a prosecuting attorney elected
2 down there?

3 A. Yes.

4 Q. John Sutherland, if I recall?

5 A. I'm not sure who it is.

6 Q. And you reviewed some church investigative reports
7 too?

8 A. Yes, part of that report, yes.

9 Q. Church of the Resurrection prepared an
10 investigative file in response to the 2005 to 2006
11 investigation?

12 A. I believe they did an internal investigation.

13 Q. Did you learn from those records that Scott Moore
14 had initiated the 2005 investigation?

15 A. I don't recall --

16 Q. Did you --

17 A. -- what I read.

18 Q. -- did you find in those reports that Mr. Moore
19 had been cleared of anything?

20 MS. RASMUSSEN: Your Honor, objection. May
21 we approach?

22 THE COURT: You may.

23 (Whereupon, the following proceedings were
24 held at the bench outside the presence of the jury.)

25 MS. RASMUSSEN: First of all, this is all

1 hearsay. Detective Fizer has no personal knowledge. He's
2 just looking at reports. So I object on basis of hearsay.

3 But also, he's trying to determine an ultimate conclusion
4 from the statements or his questions posed to Detective Fizer.

5 THE COURT: It does sound like hearsay.

6 MR. REGAN: Judge, they brought it up in
7 their direct. He was aware of other allegations against my
8 client. I think I'm allowed to address it in light of the
9 fact that they brought it up. If they hadn't brought it up, I
10 wouldn't have gone into it.

11 MS. JONES: Your Honor, that was as far as
12 the waiver allegations.

13 MS. RASMUSSEN: We went out in the
14 interview offering that information for the truth of the
15 matter asserted, and did you receive that information? Did
16 you go and investigate this case from that information? It's
17 not going into what was said.

18 MS. JONES: It's not going into what was
19 said.

20 MR. REGAN: Judge, if they can be allowed
21 to go into that and without my going into it.

22 THE COURT: I think you can ask if no
23 charges were filed, correct. Specifically what anyone said in
24 that investigation, if they aren't here to cross, I'm not
25 going to allow that, but I think you can ask the questions

1 that you were asking.

2 MR. REGAN: The witnesses in the
3 investigation will be here today and available for cross, Lee
4 Jost, Nancy Brown and Mark Childress.

5 THE COURT: The charging question, whether
6 he was charged or not, I think you can ask that. Whether he
7 was exonerated, I think was the question.

8 MR. REGAN: I think the question was
9 exactly, was he cleared by the church, which he was in 2005.

10 THE COURT: The church people are going to
11 testify that he was cleared?

12 MR. REGAN: Yeah, yeah.

13 MS. RASMUSSEN: I don't think the church
14 people will testify that he was cleared. They will testify
15 that they felt at the time there wasn't enough information in
16 2005 to do anything.

17 MR. REGAN: The reports I have indicated he
18 was cleared of any wrongdoing and reinstated in the position
19 in church in 2005.

20 THE COURT: He can answer the question if
21 he knows the answer.

22 MR. REGAN: Thank you.

23 (Whereupon, the following proceedings were
24 held away from the bench in the presence of the jury.)

25 Q. (By Mr. Regan) Detective Fizer, before the

1 objection I asked you a question, and here's what it was.

2 The evidence you reviewed showed that my client was
3 cleared of wrongdoing after the 2005 investigation by the
4 church's own investigator?

5 A. It's my understanding that no charges were filed.

6 Q. When you read those reports, did they indicate to
7 you that Jordan Galbraith, who is going to testify for the
8 State today, was unable to identify who was in his room?

9 MS. RASMUSSEN: Objection. Hearsay.

10 THE COURT: He can answer if he knows. I
11 believe that person is going to be here and is available; is
12 that correct?

13 MR. REGAN: Yes.

14 THE COURT: Overruled. He may answer.

15 A. I don't remember exactly what Jordan's report
16 indicated. I know he'll be here to testify today and tell his
17 story.

18 Q. (By Mr. Regan) You don't remember Jordan telling
19 the authorities in the church that he could not identify who
20 was in the room that night?

21 A. I don't remember specifically what was in the
22 report.

23 Q. Is it possible it's in the report, and you don't
24 remember?

25 A. It's possible.

1 Q. Are you aware of there's a roommate of Mr. Moore's
2 in the 2005 allegations by the name of Dr. Childress that
3 indicated he did not notice Mr. Moore leaving the room, and
4 didn't have anything to do with Mr. Galbraith?

5 A. I don't remember.

6 Q. You don't remember?

7 A. No.

8 Q. You've got a whole stack of documents in there.
9 Are any of those statements in there?

10 A. No. I don't have any of the Linn County
11 investigative records.

12 Q. In reading the statement, did you notice a lot of
13 inconsistencies in what Jordan Galbraith said?

14 A. I don't remember.

15 Q. Well, do you remember talking to Jordan Galbraith
16 yourself last year?

17 A. I talked to Jordan Galbraith on the phone.

18 Q. You do remember that?

19 A. Yes.

20 Q. But you chose not to go in person?

21 A. Yes.

22 Q. You chose not to do the leg work and see him face
23 to face?

24 A. I conduct many interviews on the phone.

25 Q. You called him, and somebody taped it?

1 A. I did.

2 Q. Did you give that to the District Attorney's

3 Office?

4 A. I did.

5 Q. You taped it and gave it to the District

6 Attorney's Office?

7 A. I did.

8 Q. And they were kind enough to give it to us. Now,

9 you've got reports to refresh your recollection?

10 A. I do have that report.

11 Q. And did you tell Jordan that everything he told

12 you was going to be written down and recorded?

13 A. I didn't notify him that I was recording the

14 interview, no.

15 Q. Do you remember Jordan telling you, "It's been a

16 while. I don't want to retract anything I said back then"?

17 A. Yes, I remember him saying that.

18 Q. Now, when you talked to these kids, interviewing

19 kids is different than interviewing adults?

20 A. That's right.

21 Q. When interviewing kids, you want to be careful not

22 to suggest the answer to them in your question?

23 A. That is the purpose, yes.

24 Q. You want to have open-ended questions and not

25 leading questions, so no one can say later: Hey, you gave him

1 the answer?

2 A. That's correct.

3 Q. You want to refrain from using verbal rewards to
4 kids leading them down one path or another?

5 A. I guess.

6 Q. You just want to fairly and impartially ask the
7 questions so they can fairly and impartially give you an
8 answer?

9 A. I ask an opened-ended question, and I let them
10 answer.

11 Q. All right. Do you remember you asking him this
12 question: "Okay. So you were the one touched by Scott
13 Moore?"

14 A. I think that was a follow-up to what he had told
15 me.

16 Q. That's not an open-ended question?

17 A. It's a clarifying question.

18 Q. Well, do you remember these three questions from
19 you, "So your incident, so did your incident happen at the
20 camp?" Jordan, "Yes, it did." "Okay. And you were the one
21 that was in the same cabin as Collin and Kyle?" "Yes."
22 "Okay. So you were the one touched by Scott Moore; right?"

23 A. If that's what I said, that's what I said.

24 Q. Those are leading questions; right?

25 A. Those would be direct questions, yes.

1 Q. And do you recall telling him, "I know you're
2 going to review your statement, and your statement is going to
3 be an accurate recollection of events?"

4 A. Yes. He indicated to me that it had been such a
5 period of time that he was having a difficult time remembering
6 everything, and that he had provided a written statement and
7 was going to review that to refresh his memory.

8 Q. And when you were done talking with him, do you
9 remember giving him this verbal reward, "Okay. Well that's
10 exactly what we needed to know. That's exactly the story that
11 Erika is looking for. That's exactly what Erika was looking
12 for?"

13 A. I believe my quote was, "that's exactly what I
14 needed to know," and confirmation of him being able to recall
15 the events. And then I said, "That's exactly the story that
16 Erika is looking for. Your recollection of the events is
17 important."

18 Q. Well, what you said was, "That's exactly the story
19 Erika is looking for. That's exactly what Erika was looking
20 for." And you keep looking at them when I'm asking you this
21 question; why?

22 A. Well, the audio recording is available.

23 Q. I know it's available. Do you want to have it
24 played?

25 A. If you would like.

1 Q. Do you disagree that's what you told this boy when
2 you were done talking to him?

3 A. I told him, "That's exactly the story Erika was
4 looking for your recollection of the events that occurred."

5 Q. And you told him you were happy with what he told
6 you. You gave him a verbal reward for his testimony?

7 A. I don't believe I said I was happy with what he
8 said.

9 Q. And you interviewed another kid named Kyle Heslop,
10 right, who was in the cabin with Jordan in 2005?

11 A. Yes, another phone interview with Kyle.

12 Q. Kyle indicated that he didn't remember what
13 happened and nobody touched him; right?

14 A. That's right.

15 Q. You didn't give him any verbal reward. You didn't
16 tell him that's exactly what Erika wants to hear?

17 A. I didn't say that, no.

18 Q. He didn't get from you what Jordan got?

19 A. As far as?

20 Q. He didn't get an attaboy at the end of his
21 statement?

22 A. No.

23 Q. In fact, did you close with him, "Well, you'll
24 probably be getting some mail from the District Attorney's
25 Office." That's how you concluded?

1 A. Yes. I advised him that he would be getting
2 information from the DA.

3 Q. Did Mr. Galbraith tell you that he had been
4 disciplined by Mr. Scott Moore for wearing an obscene shirt?

5 A. I don't remember.

6 Q. Did he tell you he had been disciplined for
7 sticking a pencil in a kid's eye?

8 A. No.

9 Q. Do you think it's important for a kid to be
10 wearing, "Got semen?" at a church camp?

11 MS. RASMUSSEN: Objection. Relevance.

12 THE COURT: He can answer if he knows.

13 A. I don't know.

14 Q. (By Mr. Regan) Would you want your kid wearing
15 that shirt at a church camp?

16 A. My kid won't go to a church camp.

17 Q. Did Jordan tell you that his own parents had told
18 him they believed Scott was innocent?

19 MS. RASMUSSEN: Objection, Your Honor,
20 hearsay.

21 THE COURT: Sustained.

22 Q. (By Mr. Regan) Now, when you arrest somebody, all
23 you need is probable cause; right?

24 A. It's probable cause for an arrest; right.

25 Q. Somebody probably did what you think they did?

1 A. Correct.

2 Q. And when you send a case file to the DA's Office,

3 you send it with a statement of probable cause; right?

4 A. I send it with a prosecution summary.

5 Q. And does that include a statement of probable

6 cause?

7 A. It's a packet of facts as reported to me by other

8 people.

9 Q. Do you send them a document that sends a proof

10 beyond a reasonable doubt statement?

11 A. No, I don't.

12 Q. You don't, do you?

13 A. No.

14 Q. And when the DA in this building, and other

15 counties present a case, file cases, they can do so upon a

16 showing of probable cause; correct?

17 A. Yes, they can.

18 Q. And the Linn County Prosecutor, their elected

19 official in another county, chose not to file cases in

20 response to the allegations in 2005 and 2006 in his own

21 county; correct?

22 A. That's my understanding.

23 Q. All he needed was his probable cause to do so;

24 right?

25 A. Yes.

1 Q. Will you agree with me that you should not
2 prosecute or present a case for someone, ethically or morally,
3 unless you have proof that they did what you believe they did?

4 A. I believe that's a true statement.

5 Q. Will you agree with me you can't prosecute someone
6 without identification of the perpetrator in the case in
7 general?

8 A. In general.

9 Q. Did you review the reports regarding the 2006
10 incident?

11 A. At some point in the past. I have not recently.

12 Q. All right. And as a skilled detective, after
13 reading that did you conclude that no one in that set of
14 allegations indicated they had been touched in a sexual
15 nature?

16 A. I don't remember exactly what was included in
17 those reports. I wasn't the investigating officer.

18 Q. Is it possible that's what's in there, but you
19 don't remember?

20 A. Yes.

21 Q. And if nothing of a sexual nature was done
22 regarding any touching of these kids, no crime was committed;
23 correct?

24 MS. RASMUSSEN: Your Honor, objection.
25 Calls for speculation. He's indicated he has no memory or

1 recollection of those events.

2 THE COURT: Overruled. He may answer, if
3 he knows.

4 Q. (By Mr. Regan) No crime was committed in the 2006
5 cases?

6 A. A crime of sexual battery may not have been
7 committed.

8 Q. Did you go back and diagram these cabins?

9 A. No.

10 Q. Did you go back and photograph these cabins?

11 A. No.

12 Q. Why not?

13 A. I was not the investigating agent. I did not have
14 jurisdiction.

15 Q. You could have gone over and followed up to
16 present these to this jury.

17 A. Those cases weren't in my jurisdiction.

18 Q. But there's nothing prohibiting you to go over and
19 take a camera and photographing these cabins?

20 A. No.

21 Q. And nothing saying you can't call a fellow
22 detective over in Linn County and ask: Can you go in the
23 cabins and diagram them so I can send them to the DA's Office?

24 A. That's correct. I did not do that.

25 Q. You chose not to?

1 A. Correct.

2 Q. Did you determine what the lighting conditions
3 were in these cabins?

4 A. No.

5 Q. Did you interview the girls that had broken in a
6 cabin in 2006?

7 A. No, I did not.

8 Q. Did Nick tell you that he and Scott had a
9 discussion about things that had gone wrong in school?

10 A. I don't recall.

11 Q. Did Nick tell you that he had been verbally
12 disciplined or admonished by Scott to quit getting himself in
13 trouble at school?

14 A. No.

15 Q. Did Nick tell you he was upset with Scott for
16 Scott telling him things he didn't want to hear?

17 A. No.

18 Q. Let's talk about kids in general. When you're
19 talking about a teen group of teenagers that see something or
20 want to report something to the police, would it be fair to
21 say that in general when kids get together and talk about what
22 they had just seen, sometimes their stories get exaggerated?

23 A. I don't know.

24 MS. RASMUSSEN: Your Honor, may we
25 approach?

1 THE COURT: You may.

2 (Whereupon, the following proceedings were
3 held at the bench outside the presence of the jury.)

4 MS. RASMUSSEN: Your Honor, my objection
5 would be that Detective Fizer is not an expert and does not
6 qualify as an expert in children's responses and
7 exaggerations. I mean, he's asking things along the line
8 that's probative. It's something the State has not offered
9 Detective Fizer as an expert in a child's interview or
10 collecting children's statements.

11 MR. REGAN: Judge, I think as a lay
12 witness, as a nonexpert witness, he can testify about his
13 experience with children and exaggerating when they get
14 together.

15 THE COURT: He's investigated these types
16 of crimes for a lot of years as a special unit. He can answer
17 if he knows. Overruled.

18 (Whereupon, the following proceedings were
19 held away from the bench in the presence of the jury.)

20 Q. (By Mr. Regan) Detective Fizer, in general would
21 it be fair to say that kids see something, law enforcement can
22 investigate as required and that it's best to talk with them
23 individually before they can all get together and mix stories
24 up?

25 A. I think it's fair to say that you do interview

1 them individually.

2 Q. Is it fair to say that if you can't do that, if
3 kids get together and talk about things as a group over time,
4 sometimes the stories get exaggerated?

5 A. I can't make that generalization.

6 Q. Have you ever seen that happen before?

7 A. Not that I can specifically recall.

8 Q. Never?

9 A. Not that I can recall.

10 Q. Will you agree with me that it's a better practice
11 to interview kids separately one by one so one story doesn't
12 taint others?

13 A. That's the best practice, yes.

14 Q. Are you aware that Marcus Blanckensee and Preston
15 Moore dispute the story that Nick Koch told you?

16 A. I just have what Marcus Blanckensee told me in his
17 interview, which is I believe what he testified to.

18 Q. Did you have a chance to have a telephone
19 conversation with Lori Koch, Nick's mom?

20 A. Yes, I did.

21 Q. Is it fair to say that she didn't like Scott Moore
22 or his family?

23 A. She does not like what Scott Moore did.

24 Q. Is it fair to say that she did not like Scott
25 Moore or his family was the question.

1 A. I don't know what her personal feelings are
2 towards Mr. Moore or his family.

3 Q. Are you sure about that?

4 A. I think she indicated to me that she was aware of
5 the past allegations.

6 Q. Did you encourage bad feelings between, from her
7 to Mr. Moore and his family?

8 A. I don't know what you mean.

9 Q. I want to draw your attention to the interview
10 between you and Lori Koch. Did you tape an interview between
11 you and Lori?

12 A. I may have audio recorded one.

13 Q. And you talked to her on the phone, or did you
14 record it in person?

15 A. I'm not sure which interview you're referring to.

16 Q. I've been given several clips of tapes between you
17 and Lori Koch. Do you remember saying to Lori Koch, about
18 Mrs. Moore, who has nothing to do with this case, "So she's
19 the woe is me person"?

20 A. I don't remember saying that, but I may have.

21 Q. You deny it?

22 A. No.

23 Q. Do you remember Lori saying to you -- your
24 response, "Over the past years, she has never been a person I
25 wanted to get too close with. She talks a lot, always hearing

1 about her sad childhood. She's got, and I don't want to say a
2 depressive personality, but, oh gosh, she has some issues to
3 work out in your own personality, and I don't have time for
4 that."

5 Your response: "So she is the woe is me person?" Do you
6 remember that?

7 A. I don't remember specifically saying that, but if
8 that's what you say.

9 Q. Then she starts saying mean things about Preston.
10 "Well, I guess I didn't say Preston is more like the outside
11 kid. Do you know what I mean? In troop he doesn't have a lot
12 of friends."

13 MS. RASMUSSEN: Your Honor, may we
14 approach?

15 THE COURT: Yes.

16 (Whereupon, the following proceedings were
17 held at the bench outside the presence of the jury.)

18 MS. RASMUSSEN: My objection is the best
19 evidence rule. if he wants to play the tape, if he wants to
20 play the audio and play them in their completeness, that's
21 fine. The best evidence for the conversations is the
22 recording that he's discussing. So if he's going to get in
23 all of these statements --

24 THE COURT: How does this relate?

25 MR. REGAN: What I'm trying to prove is

1 what Ms. Koch and her husband would say about my client and
2 his family, which I think is relevant, and I only have one
3 more question.

4 THE COURT: I'll allow the question. The
5 best evidence rule does not apply here. Overruled.

6 (Whereupon, the following proceedings were
7 held away from the bench in the presence of the jury.)

8 Q. (By Mr. Regan) During your interview, you were
9 helping Ms. Koch along a little bit talking about Preston.
10 Your comment, "Just flaky, obnoxious, real goofy"?

11 A. I don't remember that conversation.

12 Q. You don't know this kid?

13 A. I don't know him at all.

14 Q. Why would you say such things?

15 A. Based on what she was telling me apparently. I
16 don't remember.

17 MR. REGAN: May I have just a moment
18 please, Judge?

19 THE COURT: Yes.

20 MR. REGAN: No further questions of this
21 witness, Your Honor.

22 THE COURT: Redirect?

23 REDIRECT EXAMINATION

24 BY MS. RASMUSSEN:

25 Q. I want to go back to some of the things Mr. Regan

1 asked you about. Is it illegal to take photos of clothed
2 people while they are sleeping?

3 A. No, it's not.

4 Q. So if pictures existed on the computer of people
5 sleeping in a room, would that be a crime?

6 A. No.

7 Q. And Mr. Regan asked you if you ever interviewed a
8 boy taken home by the defendant on that night. Did you know
9 about a boy taken home by the defendant?

10 A. I didn't know about a boy specifically taken home
11 by the defendant. I knew there were other kids present at the
12 family party. I didn't interview him though.

13 Q. And those kids that were present at the family
14 party, did they sleep over and stay in that living room?

15 A. No.

16 Q. And Mr. Regan asked you a little bit about your
17 interviews of Jordan Galbraith and Kyle Heslop. What year did
18 you interview them in?

19 A. I believe it was in 2012.

20 Q. Okay. And those kids, do you know approximately
21 how old they were by 2012?

22 A. They would have been in their late teens, early
23 twenties.

24 Q. So they were adults by the time you interviewed
25 them?

1 A. Yes.

2 Q. Now, I believe Mr. Regan may have cut you off when
3 he was asking you about this reward that you offered Mr.
4 Galbraith in your conversation with him on the phone. What
5 was it you said to Mr. Galbraith?

6 A. I said, "That's exactly what I needed to know."
7 And then I told him "That's exactly the story Erika is looking
8 for. Your recollection is important."

9 Q. Was that before or after or in the middle of the
10 of the process of Mr. Galbraith telling you what he recalled?

11 A. That was at the conclusion of the interview.

12 Q. So after you gave Mr. Galbraith this reward, you
13 weren't asking any more questions?

14 A. I don't believe I did.

15 Q. Not trying to get any more answers out of him?

16 A. No.

17 Q. Now, Mr. Regan talked to you a little bit about
18 filing cases and arresting someone and probable cause. Are
19 you aware of law enforcement, police officer ethical standards
20 regarding, and legal standards regarding filing such cases?

21 A. Yes.

22 Q. Okay. Do you have any specialized knowledge of
23 prosecutorial or attorney standards, and what they must reach,
24 and what they must ethically do to file a case?

25 A. I do not have any training or knowledge about how

1 the prosecutors make their decisions with the filing, what to
2 file.

3 Q. And Mr. Regan also asked you a lot of questions
4 about 2005 and 2006 and what happened in Linn County. Were
5 you the assigned investigator in those cases?

6 A. No, I was not.

7 Q. Mr. Regan mentioned that you brought a lot of
8 papers with you today. Did you bring those reports?

9 A. No.

10 Q. Were they anything that you had personal knowledge
11 of during that investigation?

12 A. No.

13 Q. Now, Mr. Regan also asked you about your interview
14 of Marcus Blanckensee. And I believe he asked you if it
15 completely contradicted what Nick Koch said. So I want to ask
16 you questions about Marcus's interview with you. If you need
17 to refer to your report to refresh your recollection, just let
18 us know.

19 When you interviewed Marcus, what did he say that the
20 group of kids had done that night?

21 A. Gone to a movie for Preston's birthday.

22 Q. What movie?

23 A. Iron Man 2.

24 Q. What did they do when they returned to the house?

25 A. Played Xbox, I believe, yeah, they played Xbox.

1 Q. Now, do you recall whether this is what Nick Koch
2 said in his interview, or if this is something different?
3 A. This is what Marcus Blanckensee said.
4 Q. What I'm asking you, did Nick say what movie they
5 went to see?
6 A. I believe he did.
7 Q. Okay. And that would all be on the recorded
8 interview?
9 A. That would be on the recorded interview.
10 Q. All right. And did Marcus indicate where Nick
11 slept in the home?
12 A. Yes.
13 Q. Where did he say he slept?
14 A. On the couch in the living room.
15 Q. And where did Nick report that he had slept?
16 A. On the couch in the living room.
17 Q. And did Marcus indicate whether or not he had gone
18 to sleep in the living room as well?
19 A. Yes.
20 Q. And where did he say he slept?
21 A. He slept on the couch in the living room.
22 Q. Not the same couch, a different couch?
23 A. It was a different couch.
24 Q. And what time did Marcus -- what caused Marcus to
25 wake up, or what did he say he recalled when he woke up?

1 A. He heard someone at Preston's front door. Preston
2 answered the door, and Nick left with his mom.

3 Q. Okay. And did Marcus indicate whether or not he
4 had ever spent the night at anyone's house with Nick in the
5 past?

6 A. Yes.

7 Q. Did he indicate whether or not it was common for
8 Nick to get up and leave in the middle of the night when
9 staying over with a friend?

10 A. He thought it was strange that Nick left.

11 Q. I want to go back also very quickly to your
12 interview with Lori Koch. Did that occur before or after she
13 had received information from Nick regarding the touching
14 incidents?

15 A. It would have been after.

16 MS. RASMUSSEN: Nothing further.

17 THE COURT: Any recross?

18 MR. REGAN: No, thank you.

19 THE COURT: Thank you for your testimony.
20 You may step down.

21 THE WITNESS: Thank you.

22 THE COURT: State's next witness.

23 MS. JONES: The State would call Darick
24 Chapman.

25 MS. RASMUSSEN: Your Honor, may Detective

1 Fizer be excused?

2 THE COURT: Any objection, Mr. Regan?

3 MR. REGAN: No.

4 THE COURT: He may be excused. Thank you.

5 DARICK CHAPMAN,

6 having been duly sworn to tell the truth, the whole truth and
7 nothing but the truth, testified as follows:

8 DIRECT EXAMINATION

9 BY MS. JONES:

10 Q. Good morning.

11 A. Morning.

12 Q. Please state your name.

13 A. Derek Chapman.

14 Q. Mr. Chapman, what is your occupation now?

15 A. I am the AG teacher for the Pleasanton High
16 School.

17 Q. And where is that located?

18 A. Pleasanton, Kansas.

19 Q. How far is that?

20 A. Sixty miles south.

21 Q. In 2006, sir, what was your occupation?

22 A. I was a deputy sheriff for the Linn County
23 Sheriff's Department.

24 Q. How long were you a deputy sheriff for the Linn
25 County Sheriff's Department?

1 A. From '95 until '07.
2 Q. Twelve years?
3 A. Yeah.
4 Q. So you left in 2007?
5 A. Yes.
6 Q. Where exactly is Linn County located with respect
7 to here in Johnson County?
8 A. Johnson County, Miami County, Linn County.
9 Q. South?
10 A. South.
11 Q. The Youthfront Camp, that's located in Linn
12 County; is that right?
13 A. Yes.
14 Q. Now, is that my understanding that's on the
15 Linn/Miami County line?
16 A. Yes, ma'am.
17 Q. Where are the boys' cabins in the Youthfront Camp
18 located?
19 A. The boys' cabins at that time --
20 MR. REGAN: May we approach?
21 THE COURT: Yes, you may approach.
22 MR. REGAN: Thank you.
23 (Whereupon, the following proceedings were
24 held at the bench outside the presence of the jury.)
25 MR. REGAN: Judge, it would appear that

1 counsel is about to get into this 60-455 incident about Linn
2 County. I ask the Court to note my continuing objection about
3 testimony on this particular witness on the grounds that the
4 probative evidence is far outweighed by the prejudicial value.

5 THE COURT: Anything to add?

6 MS. JONES: No.

7 THE COURT: Your objection is noted and it
8 is overruled.

9 (Whereupon, the following proceedings were
10 held away from the bench in the presence of the jury.)

11 THE COURT: Before we continue here, you
12 talk pretty fast and Ms. O'Malley has to take down everything
13 you say. Go ahead, Ms. Jones.

14 Q. (By Ms. Jones) The boys' cabins are located in
15 Linn County?

16 A. In '06 they were located on the Linn County side,
17 yes.

18 Q. Okay. In November of 2006, you were assigned to
19 investigate a case that involved an allegation that took place
20 at the Youthfront Camp; is that right?

21 A. Yes, I was.

22 Q. What was the general nature of the allegation?

23 A. That some boys had been improperly touched by
24 Scott Moore.

25 Q. Okay. During your investigation in November of

1 2006, did you also become aware of similar allegations
2 involving Scott Moore at the same camp the year before in
3 November of 2005?

4 A. Yes, I did.

5 Q. Did you as part of your investigation speak with
6 the boys that attended the church camp in both November 2005
7 and November of 2006?

8 A. Yes, I did.

9 Q. When and where did you speak with these boys?

10 A. In Overland Park.

11 Q. And you can't remember which Blue Valley school,
12 but it was at a school?

13 A. Yes, a school in Overland Park.

14 Q. Okay. Did you speak with Collin Williams?

15 A. I believe I did.

16 Q. Did you speak with Ben Gooding?

17 A. I believe I did.

18 Q. Did you speak with Tommy Chaney?

19 A. Yes, I did.

20 Q. Did you speak with Kyle Heslop?

21 A. That name sounds familiar also.

22 Q. Did you speak with Jordan Galbraith?

23 A. Yes, I did.

24 Q. Did you obtain written statements from some of
25 these boys?

1 A. Yes, I did.

2 Q. Did you obtain written statements from Collin

3 Williams?

4 A. I believe so.

5 Q. Did you obtain written statements from Ben

6 Gooding?

7 A. Yes, I did.

8 Q. Did you obtain a written statement from Tommy

9 Chaney?

10 A. I think so.

11 Q. Did you obtain a written statement from Kyle

12 Heslop?

13 A. I believe so.

14 Q. Did you at all when you obtained these written

15 statements or talked to any of these boys ever tell them what

16 to say?

17 A. No.

18 Q. Ever coerce them into saying something?

19 A. No, I didn't.

20 Q. Did they write these written statements in their

21 own words?

22 A. Yes, they did.

23 Q. Once you completed your investigation, what did

24 you do with it?

25 A. Well, I continued working with the case. At that

1 time the Church of the Resurrection was involved. They sent
2 me the information from the '05 incident and the '06 incident.
3 I was also contacted by the Boy Scouts of America because Mr.
4 Moore was with them at that time.

5 Q. Okay. And once you gathered all of that
6 information and you completed your portion of the
7 investigation, did you forward it on for consideration and
8 prosecution?

9 A. Yes, I did.

10 Q. And where did you forward that on to?

11 A. To the Linn County Attorney.

12 Q. And to your knowledge, was the defendant Mr.
13 Moore, Scott Moore, in this case ever formally charged with
14 those incidents from 2005 and 2006?

15 A. No, he wasn't.

16 Q. Now, Mr. Chapman, do you have any control whether
17 cases get formally charge by the County Attorney's Office?

18 A. No, I don't.

19 MS. JONES: Thank you. I have no further
20 questions.

21 THE COURT: Cross-examination?

22 MR. REGAN: Yes.

23 CROSS-EXAMINATION

24 BY MR. REGAN:

25 Q. Good morning, sir.

1 A. Good morning.

2 Q. Thank you for coming to court today. Is it fair
3 to say you investigated as thoroughly as you could in the 2005
4 allegations and the 2006 allegations?

5 A. Yes, I did.

6 Q. Is it fair to say in either set of allegations was
7 there a charge or comment made that a camera was used by Mr.
8 Moore to take pictures?

9 A. I can't -- it's been six years ago. I can't
10 remember anything about the camera.

11 Q. You don't remember anything about a camera?

12 A. No.

13 Q. Is it fair to say, are you aware that in the 2005
14 investigation that that whole investigation was initiated by
15 Mr. Moore?

16 A. The only thing I can remember about 2005 is the
17 Church of the Resurrection had their internal people do it,
18 and then they changed their security policies and hired a
19 security officer after that.

20 Q. Are you aware that Mr. Moore initiated the church
21 investigation?

22 A. No.

23 Q. Let's talk about the allegations in general. Is
24 it fair to say to start with in your investigation and
25 experience, sir, when kids describe the same events, you get a

1 lot of inconsistencies?

2 A. Sometimes, yes.

3 Q. All right. Would it be fair to say that the
4 statements in the 2005 incident, all these boys were talking
5 about this. Those statements were full of inconsistencies
6 from one kid to the next?

7 A. I can't remember because you have victims, and
8 then you have witnesses.

9 Q. Is it fair to say that there were a lot of
10 inconsistencies in 2006?

11 A. I can't remember those either without having
12 statements in front of me.

13 Q. Is it fair to say that some of the boys in the
14 2006 incident had heard rumors of what had occurred allegedly
15 in 2005?

16 A. I can't remember.

17 Q. Is it possible that that's true, but you can't
18 recall?

19 A. Yes.

20 Q. It's been a while?

21 A. Yes, it has.

22 Q. Did you prepare any diagrams or pictures of those
23 cabins?

24 A. If I have them, they were with my original report
25 that I turned in to the Sheriff's Office. And two years ago,

1 when I was called about this case, they could not find that
2 report. Just a copy of that was sent on to the prosecutor and
3 sent on to the Task Force for KBI here in the metro area.

4 Q. Do you recall comparing any diagrams of the
5 cabins?

6 A. It seems like I had pictures of them, yes.

7 Q. Did you go back and try to see what the lighting
8 conditions were that night in those cabins?

9 A. You probably could, but --

10 Q. It's pitch black in those cabins at night?

11 A. I have no idea.

12 Q. And you're aware that in the 2005 set of
13 allegations there was a Dr. Childress interview?

14 A. No, I don't.

15 Q. He was Scott Moore's roommate?

16 A. I don't know anything about that either.

17 Q. Are you aware in the investigative file that you
18 prepared, it's contained in there that Dr. Childress said that
19 Mr. Moore did not leave his room?

20 A. The only thing I have is my narrative from what I
21 turned in to the prosecutor.

22 Q. And looking at the 2005 set of allegations, would
23 it be fair to say that no one in the cabin could positively
24 identify Scott Moore at the time as the guy that had done
25 anything in the room; right?

1 A. If I remember right, it was even in my report that
2 nobody was a hundred percent sure.

3 Q. Right. And in your investigative history and
4 experience, if you don't have identification of a suspect, you
5 don't have a case?

6 A. It's hard to prosecute, yes, sir.

7 Q. Would it be fair to say in 2006, after
8 interviewing all of the boys there, no sexual touching was
9 alleged by those boys; correct?

10 A. I think the 2006 incident was, all they heard was
11 a waistband snap or felt a waistband snap.

12 Q. Nobody alleged that they had been touched
13 inappropriately?

14 A. Not according from what I remember.

15 Q. So if no crime was committed, you can't prosecute
16 that one either?

17 A. That's correct.

18 Q. Now, the prosecutor in those days was John
19 Sutherland?

20 A. He still is.

21 Q. A good guy?

22 A. Yes.

23 MS. JONES: Objection. That's commenting
24 on the credibility of someone that's not here.

25 THE COURT: Sustained.

1 Q. (By Mr. Regan) He's elected by the County to do
2 his job as they see fit?
3 A. Yes.
4 Q. He was open for business back then in 2005, 2006?
5 A. Yes.
6 Q. And he's open for business now?
7 A. Yes.
8 Q. And if he chose to file this case, he could file
9 it?
10 A. Yes.
11 Q. And he chose not to file it because there was
12 insufficient evidence; correct?
13 A. Well, I left for a new job. At the time, it was
14 turned?
15 Q. Well, you were still available?
16 A. Yes.
17 Q. Because you're here five or six years later when
18 they call you in another county?
19 A. Correct.
20 Q. So he chose not to file the case because there was
21 insufficient evidence?
22 MS. JONES: Objection. Speculation. He
23 has no idea.
24 THE COURT: Sustained.
25 Q. (By Mr. Regan) Do you know whether or not he

1 rejected the file?

2 A. I don't know why he didn't file on it.

3 MR. REGAN: Your witness.

4 THE COURT: Redirect?

5 REDIRECT EXAMINATION

6 BY MS. JONES:

7 Q. Mr. Chapman, in 2005 allegations from the church
8 camp in Linn County, those were not made available or you were
9 not made aware of those until 2006; correct?

10 A. Correct.

11 Q. They weren't reported by the church?

12 A. Correct.

13 Q. If they had been reported by the Church of the
14 Resurrection, would they have been investigated by Linn
15 County?

16 A. Yes, they would have.

17 Q. Do you recall being given any information as to
18 why the case was not prosecuted by Linn County?

19 A. No.

20 Q. Have you submitted cases in the past that you
21 desired to have prosecuted that weren't?

22 A. Yes.

23 MS. JONES: Thank you.

24 THE COURT: Any recross?

25 MR. REGAN: No, ma'am.

1 THE COURT: Thank you for your testimony.
2 You may step down.

3 It's a little after ten and probably a good time for a
4 morning recess. Let's take 17 minutes and reconvene at 10:20.
5 Anything further?

6 MS. JONES: Can Mr. Chapman be excused?

7 THE COURT: Any objection?

8 MR. REGAN: No.

9 THE COURT: He'll be excused.

10 THE WITNESS: Thank you.

11 (Whereupon, a break was taken at 10:03
12 a.m., and proceedings resumed at 10:25 a.m.)

13 THE COURT: We are back on the record in
14 State of Kansas versus Scott P. Moore, 10CR2633. Parties
15 appear as before, including the defendant with his counsel.
16 The jury is in place. We were taking a morning break, and we
17 are now back on the record for further evidence by the State.
18 You may call your next witness.

19 MS. JONES: The State calls Collin
20 Williams.

21

22

23

24

25

1 MICHAEL COLLIN WILLIAMS,
2 having been duly sworn to tell the truth, the whole truth and
3 nothing but the truth, testified as follows:

4 DIRECT EXAMINATION

5 BY MS. JONES:

6 Q. Good morning.

7 A. Good morning.

8 Q. Please state your name?

9 A. Michael Collin Williams.

10 Q. How old are you now?

11 A. I am twenty-one. I will be twenty-two in March.

12 Q. Do you go by Michael or Collin?

13 A. I go by Collin.

14 Q. May I call you Collin?

15 A. You may.

16 Q. What is your date of birth?

17 A. It is 3/13/91, March 13th, 1991.

18 Q. Do you know Scott Moore?

19 A. I do.

20 Q. When was the last time you saw Mr. Moore?

21 A. At Metamorphosis, a church retreat.

22 Q. When would that be?

23 A. Five, six years ago.

24 Q. If you ever saw him again, would you recognize
25 him?

1 A. I do.

2 Q. Do you see him the court today?

3 A. Yes, I do.

4 Q. Can you point to him and generally what is he

5 wearing?

6 A. He's wearing a blue, button-down shirt and a dark

7 blue tie.

8 Q. All right. Now that you have identified the

9 defendant, Collin, when you went to that church camp, was it

10 back in 2006 that you can recall?

11 A. That seems like it would be, or that it would

12 sound correct.

13 Q. If I told you that it would be November 2006,

14 would you have any reason to disagree with me?

15 A. I would not.

16 Q. How old were you then?

17 A. I was still in high school. I would say about

18 maybe somewhere around fifteen, sixteen.

19 Q. Do you recall what the duration of that camp was?

20 A. It was a weekend retreat, Friday, Saturday and

21 went home Sunday.

22 Q. What was the defendant, Mr. Moore's involvement in

23 that camp?

24 A. He was our cabin leader along with Joey, another

25 cabin leader.

1 Q. Okay. What were the general sleeping arrangements
2 at the camp? By that I mean, how many boys to a room?

3 A. It was four to a room, two bunk beds on either
4 side of the walls.

5 Q. So you slept in a bunk bed?

6 A. I did.

7 Q. Were you sleeping on the top bunk or the bottom
8 bunk?

9 A. Top bunk.

10 Q. Did the defendant sleep in your room?

11 A. He did not.

12 Q. Did the defendant have a policy about cabin doors?

13 A. They were to remain open.

14 Q. Okay. Did he ever explain why he had this policy?

15 A. No.

16 Q. On the first night of the church camp in November
17 2006, did anything happen in the middle of the night that woke
18 you up?

19 A. A figure came in the room that I believe it was
20 Scott Moore.

21 Q. Okay.

22 A. Based on, I saw a silhouette. I don't know if it
23 was just his figure and knowing that he was one of the only
24 men in the room. The other one was much shorter with the same
25 build and seemed like the same hair.

1 Q. Now, I realize that this has been over six years
2 ago, so you saw a figure come in, and then what else do you
3 remember as of today?

4 A. I remember he was bending over to a friend of
5 mine, Tommy's bunk, and was looking down at him. He was
6 crouched under. He was on the bottom bunk. I heard an
7 elastic waistband kind of sound like it hit skin, and I awoke
8 or I shot up out of bed. I was scared to death, and I had to
9 do something, and the only thing I could think of was just
10 shoot up like I had just woken up from a bad dream to kind of
11 distract or kind of stop the situation, and he stumbled out.
12 He tripped on something laying on the floor. Since none of us
13 were neat and all of our bags, and then he was out the door.

14 Q. He, being the defendant?

15 A. Yes.

16 Q. Now, you said you made a gesture as you were
17 describing the elastic. Tell me, as I saw you made a gesture
18 of elastic being pulled back, what was the sound that you
19 heard?

20 A. I mean, it would be similar to an underwear
21 waistband, pulling it and just letting it go.

22 Q. So a snapping sound, or how would you describe
23 that?

24 A. The sound that a rubber band makes hitting a
25 wrist.

1 Q. And you said that you felt that you had to do
2 something to stop the situation?

3 A. Yes.

4 Q. Were you scared?

5 A. I was petrified.

6 Q. Do you remember talking to law enforcement about
7 what had happened to you at the church camp a short period of
8 time after this happened?

9 A. A sheriff at my school, Blue Valley North, at the
10 counselor's room, we wrote a written statement of what we
11 remember happening.

12 Q. And you recall writing down or making a written
13 statement?

14 A. I do.

15 Q. At that time?

16 A. I do.

17 Q. And have you since had an opportunity to review
18 that statement?

19 A. I have.

20 (Whereupon, State's Exhibit No. 3 was
21 marked by the reporter for identification.)

22 Q. (By Ms. Jones) Now, Collin, would the events of
23 November 2006 have been clearer in your mind when you wrote
24 this statement or today?

25 A. I don't understand.

1 Q. Okay. When you made this written statement, it
2 had been just a short period of time since that incident?

3 A. Correct.

4 Q. Were the events fresh in your mind then?

5 A. Yes, they were.

6 Q. Were they fresher in your mind than they are
7 today?

8 A. Yes, they were.

9 Q. I'm going to show you what's been marked as
10 State's Exhibit 3. Do you recognize that?

11 A. Yes, I do.

12 Q. What do you recognize it to be?

13 A. My statement of what happened.

14 Q. Is that your handwriting?

15 A. It's my handwriting, yes, it is.

16 Q. Do you recall making this statement?

17 A. I do.

18 Q. When you made this written statement, did anyone
19 tell you what to write in it?

20 A. Not at all.

21 Q. Did anyone tell you what to say?

22 A. No, just the truth.

23 MS. JONES: Your Honor, I move to admit
24 State's Exhibit 3.

25 THE COURT: Any objection?

1 MR. REGAN: Can we approach, please?

2 THE COURT: Yes.

3 (Whereupon, the following proceedings were
4 held at the bench outside the presence of the jury.)

5 MR. REGAN: I respectfully object to the
6 admission of that document at this time. It's hearsay. It's
7 cumulative. It's inappropriate bolstering of a witness before
8 he's been cross-examined.

9 THE COURT: Any comment?

10 MS. JONES: It's not hearsay because he's
11 here. I don't believe it's cumulative. He testified that the
12 events were fresher in his mind. This is a more accurate
13 version of what happened.

14 THE COURT: The objection is overruled.
15 The document will be admitted.

16 (Whereupon, State's Exhibit No. 3 was
17 admitted into evidence.)

18 Q. (By Ms. Jones) Collin, do you know Nick Koch?

19 A. I do not.

20 Q. You never spoke to him?

21 A. No.

22 MS. JONES: Thank you.

23 THE COURT: Cross-examination?

24 MR. REGAN: Thank you, Judge.

25

CROSS-EXAMINATION

BY MR. REGAN:

Q. Good morning, Collin.

A. Morning.

Q. My name is Kevin Regan. I'm representing Mr. Moore, and I've got some questions for you. All right. Do you know Jordan Galbraith?

A. I do.

Q. Is he a good friend of yours?

A. He is not.

Q. Are you guys Facebook friends?

A. I don't know, honestly.

Q. Do you talk with him more than once a month?

A. No.

Q. Have you talked with him since 2006?

A. I have.

Q. A couple times?

A. I have.

Q. Would it be fair to say that he's told you some things that he believes happened to him at the camp in '05?

A. I have not spoken to him about what happened to him. I know that he has had something similar happen. I don't know the details.

Q. How do you know that?

A. Because it was made apparent during the retreat at

1 the time that it happened.

2 Q. In '06?

3 A. When Jordan came forward.

4 Q. Were you at the camp in '05?

5 A. If that was when Jordan came forward, yes, I was
6 present when he did.

7 Q. You were present when he did. Did Jordan tell you
8 he did not know who had come into his room?

9 A. I don't remember.

10 Q. Is it fair to say that these cabins are kind of
11 small?

12 A. Yes.

13 Q. Is it fair to say that these cabins are built into
14 the ground, and there are no windows?

15 A. There are windows.

16 Q. There are?

17 A. Yeah.

18 Q. Are you sure about that?

19 A. I am absolutely positive.

20 Q. Is it fair to say that at night these rooms are
21 pitch black?

22 A. There was a light on in the hallway. Generally
23 speaking, the lights were off, yes.

24 Q. So it's so dark you can't even see your hand in
25 front of you?

1 A. I could see a silhouette. I could see figures. I
2 could see the layout of the room. Details and color, maybe
3 not.

4 Q. Would it be fair to say that those rooms are noisy
5 at night because of the loud dehumidifier going on?

6 A. No.

7 Q. There's not a dehumidifier going on?

8 A. Not that I can remember.

9 Q. Is it possible there was, and you don't remember?

10 A. I can't say.

11 Q. Kids are in bunk beds; correct?

12 A. Correct.

13 Q. How many to a bunk? Two, a bunk up and down?

14 A. Yes.

15 Q. Four beds to a room?

16 A. Yes.

17 Q. And were those rooms fully occupied when you were
18 there in the cabin?

19 A. Four people in my room.

20 Q. Were there four kids in the other room?

21 A. There were a couple different rooms.

22 Q. And two leaders; right?

23 A. Yes.

24 Q. Would it be true that there had been some
25 shenanigans going on with the girls' camp and your camp that

1 particular year?

2 A. I can't remember.

3 Q. Had the girls come over and broken into the cabin
4 and stole some of your stuff?

5 A. I can't remember.

6 Q. Is it possible that occurred and you don't recall?

7 A. It is possible.

8 Q. Was it common for your guys to play pranks on each
9 other at night?

10 A. I never partook.

11 Q. Was it common for others to do it?

12 A. Not that I was aware.

13 Q. Was it common for kids to go in other kids' rooms
14 and play tricks on each other?

15 A. Meaning what?

16 Q. Meaning just what I said.

17 A. We were not allowed to go over to the girls' side.
18 They were not allowed to go over to our side. As far as I
19 know, I did not go into any other, and I don't remember them
20 coming into any of ours.

21 Q. Do you recall any of the boys coming into other
22 boys' rooms to play pranks on them at night?

23 A. Of the same cabin, we went into each others'
24 rooms. Pranks, I don't remember.

25 Q. Is it possible that happened, and you don't

1 remember?

2 A. Yes, it could be possible.

3 Q. No matter what you say you heard, you were not

4 touched inappropriately; correct?

5 A. I had done something about the situation before it

6 had escalated to that.

7 Q. Your answer is no then?

8 A. No.

9 Q. Was revenge planned by you guys to get the girls

10 back for what they had done to you?

11 A. The girls never did anything to me.

12 Q. How about other fellow camp mates?

13 A. The girls never did anything to me.

14 Q. Now, do you know what boy's bunk the supposed

15 sound came from?

16 A. My friend, Tommy.

17 Q. Tommy Chaney?

18 A. Tommy Chaney.

19 Q. Do you know what Tommy wore to bed that night?

20 A. I do not remember, but I remember the green

21 sleeping bag that he never actually closed.

22 Q. Did some of you boys wear briefs to bed?

23 A. I don't remember. I don't know.

24 Q. Some of you boys wear boxers to bed?

25 A. I remember the next night we were all fully

1 clothed.

2 Q. My question was, do some of the boys wear boxer
3 shorts to bed?

4 A. I would assume so.

5 Q. And do some of the boys wear sweat pants to bed?

6 A. I don't know.

7 Q. Would you agree with me that of briefs, boxers or
8 sweats that each of them has a different kind waistband?

9 A. Correct.

10 Q. And each one of them would make different sounds
11 than any if pulled?

12 A. If they were pulled, yes.

13 Q. And you have no idea what Tommy was wearing?

14 A. No, I do not.

15 Q. At the time you say you saw this silhouette, you
16 were not a hundred percent certain in your mind this was Scott
17 Moore?

18 A. I was one hundred percent sure that it was Scott
19 Moore.

20 Q. At the time you heard this sound, were you a
21 hundred percent sure it was an elastic band?

22 A. Yes.

23 Q. Is it possible it was something else?

24 A. No.

25 Q. Had you heard that sound before?

1 A. Yes.

2 Q. When?

3 A. Just day-to-day putting on my own underwear.

4 Q. Had you heard it coming from someone else?

5 A. Have I heard what coming from?

6 Q. Have you heard that sound coming from someone

7 else, that snapping you said you heard?

8 A. That evening, no.

9 Q. And after this night, did you guys all talk about

10 what you had seen and your heard in your room there?

11 A. Yes.

12 Q. At breakfast?

13 A. Yes.

14 Q. Did you talk among each other before talking with

15 law enforcement?

16 A. Yes.

17 MR. REGAN: No further questions.

18 THE COURT: Any redirect?

19 MS. JONES: No, Your Honor.

20 THE COURT: Thank you for your testimony.

21 You may step down. State's next witness.

22 MS. JONES: Judge, may Mr. Williams be

23 excused?

24 THE COURT: Any objection?

25 MR. REGAN: No.

1 THE COURT: He may be excused.

2 THE WITNESS: Thank you.

3 THOMAS CHANEY,
4 having been duly sworn to tell the truth, the whole truth and
5 nothing but the truth, testified as follows:

6 DIRECT EXAMINATION

7 BY MS. JONES:

8 Q. Please state your name.

9 A. Tommy, Thomas Chaney.

10 Q. Do you go by Tommy?

11 A. Yes, ma'am.

12 Q. How old are you now, Tommy?

13 A. I'm twenty-one.

14 Q. What is your date of birth?

15 A. February 16th, 1991.

16 Q. Do you know Scott Moore?

17 A. I do.

18 Q. When was the last time you saw Mr. Moore?

19 A. In church camp when I was fifteen.

20 Q. Would that have been in November of 2006?

21 A. Yes, ma'am.

22 Q. If you ever saw Mr. Moore again, would you
23 recognize him, do you think?

24 A. Yeah.

25 Q. Do you see him in the courtroom today?

1 A. I do.

2 Q. Would you please point and identify him for the
3 record?

4 A. Right there.

5 Q. Generally, what is he wearing?

6 A. A jacket, blue shirt, blue tie, short brown hair.

7 Q. Thank you for identifying him. Tommy, I want to
8 turn your attention to that church camp in November 2006. You
9 were fifteen at the time?

10 A. Yes, ma'am.

11 Q. And what do you recall the duration of that camp?

12 A. It was just one weekend.

13 Q. Would that have been Friday, Saturday night?

14 A. Yes, ma'am.

15 Q. Was the defendant at that camp as well?

16 A. Scott, yes.

17 Q. Was the defendant sleeping in your room?

18 A. He was not.

19 Q. And were you in one of those rooms that had two
20 bunks, four boys?

21 A. Yes.

22 Q. On the first night of the camp, did anything
23 happen in the middle of the night that you can recall?

24 A. On Friday night?

25 Q. Yes.

1 A. No.

2 Q. Nothing that you remember waking up to?

3 A. No, ma'am.

4 Q. While were you at the camp on the second night,
5 did something happen in the middle of the night that woke you
6 up?

7 A. Yeah.

8 Q. Now, I know that it's been six years ago. We're
9 talking about November 2006. So as you sit here today in
10 court, what do you recall happening on that second night?

11 A. I felt a poke on my back.

12 Q. Okay. And what happened next?

13 A. I turned around, and then I shined a flashlight on
14 Scott.

15 Q. So you're sleeping, and you feel something poke
16 you in the back?

17 A. Yes.

18 Q. You said you shined a flashlight?

19 A. Yes.

20 Q. So were you sleeping with a flashlight?

21 A. Yes.

22 Q. Why?

23 A. We were told to watch out for him, that that's
24 happened before.

25 Q. So you were sleeping with a flashlight because of

1 Mr. Moore?

2 A. Yes.

3 Q. So you turned over, and you shined the flashlight,

4 and what did you see?

5 A. Scott.

6 Q. What was he doing?

7 A. He was by Brent's bed.

8 Q. And then what happened?

9 A. He ran out of the room.

10 Q. So when you shined your flashlight on him, he ran

11 out?

12 A. Yes, ma'am.

13 Q. Now, the next morning, did the defendant, Scott

14 Moore, say anything to you about your interaction so to speak

15 in the middle of the night?

16 A. Yes.

17 Q. What did he say to you?

18 A. He said he had a dream that I was gone, that

19 something happened to me, and he had to come in and make sure

20 I was still there.

21 Q. But you recall him running out of the room?

22 A. He did.

23 Q. When you shined the light on him?

24 A. Yeah.

25 Q. Do you remember talking to law enforcement shortly

1 after the camp about what had happened to you?

2 A. Yes.

3 Q. And do you remember making a written statement at
4 that time?

5 A. I do.

6 Q. And have you had an opportunity to review that
7 statement since then?

8 A. Yes, ma'am.

9 (Whereupon, State's Exhibit No. 4 was
10 marked by the reporter for identification.)

11 Q. (By Ms. Jones) Tommy, I'm showing you what's been
12 marked as State's Exhibit No. 4. Do you recognize that?

13 A. Yes.

14 Q. What do you recognize it to be?

15 A. This is my written statement that I wrote after
16 the weekend.

17 Q. Okay. So you wrote this shortly after the
18 weekend?

19 A. Yes, ma'am.

20 Q. Back in 2006?

21 A. Yes, ma'am.

22 Q. And was your memory of events clear or when you
23 wrote this than it is today?

24 A. Yes, ma'am.

25 Q. Is this your signature?

1 A. Yes.

2 Q. Is this your handwriting on State's Exhibit No. 4?

3 A. Yes, ma'am.

4 Q. And did anyone tell you what to say in this
5 statement?

6 A. No, ma'am.

7 Q. Did anyone tell you what to say had happened in
8 November of 2006?

9 A. No, ma'am.

10 MS. JONES: Your Honor, I move to admit
11 State's Exhibit No. 4.

12 MR. REGAN: May we have a side bar, please?

13 THE COURT: Yes.

14 MR. REGAN: Judge, I object to the
15 admission of this document. It is cumulative to his testimony
16 and inappropriate bolstering of a witness before he's been
17 cross-examined.

18 THE COURT: State?

19 MS. JONES: Same response as before. It's
20 not cumulative.

21 THE COURT: The objection is noted and
22 overruled.

23 (Whereupon, the following proceedings were
24 held away from the bench in the presence of the jury.)

25 THE COURT: Exhibit No. 4 is admitted.

1 (Whereupon, State's Exhibit No. 4 was
2 admitted into evidence.)

3 Q. (By Ms. Jones) Tommy, do you know who Nick Koch
4 is?

5 A. No, ma'am.

6 Q. You have never spoken to anyone named Nick Koch?

7 A. No, ma'am.

8 MS. JONES: Nothing further.

9 THE COURT: Cross-examination?

10 MR. REGAN: Thank you, Judge.

11 **CROSS-EXAMINATION**

12 **BY MR. REGAN:**

13 Q. Good morning, Tommy, how is it going?

14 A. Fine, thank you.

15 Q. Would it be fair to say that you were not touched
16 in your genital area that night?

17 A. I was not.

18 Q. You were not touched in a sexual nature; correct?

19 A. Not in a sexual nature.

20 Q. And you did not hear any cameras going on or
21 flashes from a camera; correct?

22 A. No, ma'am -- no, sir, sorry.

23 Q. You didn't see any camera flashes of any kind?

24 A. No, sir.

25 Q. You didn't see any lights shine in your face or

1 anything like that?

2 A. No.

3 Q. Do you recall that Mr. Moore's flashlight was not

4 working that weekend?

5 A. I do not remember.

6 Q. Is it possible that it's true but you don't

7 remember?

8 A. His flashlight?

9 Q. Yeah.

10 A. I don't remember.

11 Q. Is it true that in those days you guys were in

12 kind of tight quarters in these cabins?

13 A. It wasn't too small.

14 Q. Were there four to a room?

15 A. Yes, sir.

16 Q. And you guys stayed in bunk beds up and down?

17 A. Yes, sir.

18 Q. Were you on the bottom bunk?

19 A. I was.

20 Q. Who was above you?

21 A. Collin Williams.

22 Q. And who were the other boys in there?

23 A. Ben and Bret.

24 Q. I don't mean to ask you embarrassing questions.

25 Do you remember what your bottom garments were that night?

1 A. Boxers.

2 Q. Boxer shorts?

3 A. Yeah.

4 Q. And did you have sweats on over them?

5 A. I don't think so.

6 Q. Or pajamas?

7 A. No.

8 Q. In those days were they -- the reason I'm asking

9 these questions, and I'll get to them in a minute, were they

10 loose fitting on real tight?

11 A. They weren't tight.

12 Q. And if that's the case, they don't make a loud

13 noise as you pull them out and snap them; correct?

14 A. I mean, they would make a noise.

15 Q. Had there been a incident where the girls from the

16 camp across the way had come and stolen stuff from your guys'

17 cabin?

18 A. Stole some stuff? I don't remember what happened.

19 Q. Had the girls come over and pulled some prank on

20 you?

21 A. Some prank.

22 Q. Was there a plot to sneak over there and get even

23 with them?

24 A. I don't think so.

25 Q. Do you remember, Tommy, that these cabins were

1 built into the ground?

2 A. Yeah.

3 Q. And the walls on the outside, they were pretty

4 high with dirt all the way around the cabins?

5 A. Yeah.

6 Q. Do you remember that it's true that these cabins

7 were very dark at night when it's time to go to sleep?

8 A. I mean, yeah, they were dark.

9 Q. Do you remember a real loud air conditioner or

10 dehumidifier that went on at night?

11 A. I don't remember.

12 Q. Do you remember the room being noisy at night?

13 A. I don't think so.

14 Q. No?

15 A. Just talking.

16 Q. From time to time did you guys play pranks on each

17 other at night, sneak into each others' room and do things to

18 each other?

19 A. I mean, I do not know.

20 Q. Was it done by others to you?

21 A. I don't believe so.

22 Q. And you had been told by somebody in '06 that

23 something inappropriate had happened in '05, and that's why

24 you had your flashlight?

25 A. Correct.

1 Q. Did all the boys sleep with flashlights in their
2 bed?

3 A. I don't know if all of them did, but I did.

4 Q. Was it common knowledge among you and your buddies
5 that something funny happened in '05, so you guys ought to
6 have flashlights?

7 A. Yes, sir.

8 Q. And when the camp was over, were you asked to fill
9 out a questionnaire, an exit interview kind of thing?

10 A. Not right at the end. I was in school, so it was
11 Monday, so the next day.

12 Q. The church asked you to do that?

13 A. No, it was the sheriff.

14 Q. Do you remember as the camp was over being asked
15 to fill out some kind of questionnaire just talking about your
16 experience at the time at the camp?

17 A. I don't remember.

18 MR. REGAN: Thank you.

19 THE COURT: Any redirect?

20 MS. JONES: No, Your Honor.

21 THE COURT: Thank you for your testimony.

22 You may step down. The State's next witness.

23 MS. JONES: That would be Bret Kingcade.

24 May Mr. Chaney be excused?

25 MR. REGAN: Yes.

1 THE COURT: You may be excused. Thank you.

2 THE WITNESS: Thank you.

3 BRET KINGCADE,
4 having been duly sworn to tell the truth, the whole truth and
5 nothing but the truth, testified as follows:

6 DIRECT EXAMINATION

7 BY MS. JONES:

8 Q. Please state your name.

9 A. Bret Kingcade.

10 Q. How old are you now, Mr. Kingcade?

11 A. I'm 21.

12 Q. What's your date of birth?

13 A. May 23rd, 1991.

14 Q. Do you know Scott Moore?

15 A. Yes.

16 Q. I want to turn your attention to November of 2006.

17 Do you remember going to church camp at that time?

18 A. Yes.

19 Q. Would you have been fifteen then?

20 A. Yes, fifteen or sixteen.

21 Q. Was Scott Moore sleeping in your room?

22 A. No.

23 Q. How many boys were in the room total?

24 A. Four.

25 Q. Four. Do you remember if Scott Moore had a policy

1 about cabin doors?

2 A. I don't know about cabin doors, but he wouldn't
3 let anyone sleep on the floor.

4 Q. That church camp, it was over a weekend; would you
5 agree?

6 A. Yes.

7 Q. When you woke up on Saturday morning of the camp,
8 did you notice anything unusual about your sleeping area?

9 A. My sleeping bag was unzipped.

10 Q. Okay. The night before when you got into your
11 sleeping bag on the bunk, did you zip it up?

12 A. Yes.

13 Q. And do you recall at any time in the middle of the
14 night getting up out of bed or unzipping the sleeping bag?

15 A. No.

16 Q. But when you woke up in the morning, it was
17 unzipped?

18 A. Yes.

19 Q. Was it completely unzipped, or tell me about that?

20 A. It was almost all the way.

21 Q. Do you know what happened, how it got unzipped?

22 A. I don't.

23 Q. Did you ever see Scott Moore come in the room in
24 the middle of the night?

25 A. No.

1 Q. Did anything wake you up?

2 A. No.

3 MS. JONES: Thank you. I have nothing
4 further.

5 THE COURT: Cross-examination?

6 CROSS-EXAMINATION

7 BY MR. REGAN:

8 Q. Good morning, sir. I've got questions.

9 Prior to going to that camp, had you been told by anyone
10 that you needed to have a flashlight at night?

11 A. No.

12 Q. Had anyone told you that Mr. Moore had done
13 anything wrong?

14 A. No.

15 Q. The year before?

16 A. No.

17 Q. Was it real dark in your room?

18 A. Yes.

19 Q. Is it true that these cabins are kind of built
20 into the ground?

21 A. I believe so.

22 Q. And there's no light coming in from the outside
23 windows at night?

24 A. Not that I remember.

25 Q. Do you remember a loud machine going on at night,

1 a humidifier or air conditioner?

2 A. I don't remember.

3 Q. Did you hear a loud snap of a rubber band?

4 A. No.

5 Q. Did you see or hear anyone with a camera taking
6 pictures with a flash bulb in there?

7 A. No.

8 Q. Has anyone told you that pictures were taken of
9 you when you were asleep?

10 A. No.

11 Q. What kind of sleeping bag did you have in those
12 days?

13 A. Just a normal sleeping bag with a zipper on the
14 side.

15 Q. Was it a double zipper where the zipper in on the
16 outside and the inside too?

17 A. It was on the outside on the side that was open.

18 Q. Did it zip all the way up to your shoulder?

19 A. Yeah.

20 Q. Was it an open shoulder -- it was a sleeping bag,
21 the kind you take up to the mountains with your head covered?

22 A. It was an open-shouldered one.

23 Q. And was it your business or practice to zip it all
24 the way up to your shoulders at night?

25 A. Yes.

1 Q. On the top or bottom bunk?
2 A. Bottom.
3 Q. Who was in the top?
4 A. I believe it was one of the Petry twins.
5 Q. Do you remember the first name?
6 A. I'm not positive.
7 Q. Did your sleeping bag zipper ever come undone just
8 with you tossing and turning in bed?
9 A. No.
10 Q. Prior to that time, had the girls in the adjoining
11 camp come and taken things from you guys?
12 A. Not that I remember.
13 Q. Was there an incident where girls slipped into
14 your cabin at night?
15 A. No.
16 Q. Did there come a time when you guys would play
17 pranks on each other at night and go in the room?
18 A. No.
19 Q. Never?
20 A. Never.
21 MR. REGAN: Thank you.
22 THE COURT: Any redirect?
23 MS. JONES: No, Your Honor.
24 THE COURT: Thank you for your testimony.
25 You may step down.

1 MS. JONES: May Mr. Kingcade be released?

2 MR. REGAN: Yes.

3 THE COURT: You may be excused.

4 MS. JONES: The State calls Ben Gooding.

5 BEN GOODING,

6 having been duly sworn to tell the truth, the whole truth and
7 nothing but the truth, testified as follows:

8 DIRECT EXAMINATION

9 BY MS. JONES:

10 Q. What is your name?

11 A. Ben Gooding.

12 Q. How old are you now, Mr. Gooding?

13 A. Twenty-two.

14 Q. What's your date of birth?

15 A. 9/11/1990.

16 Q. Mr. Gooding, do you know Scott Moore?

17 A. Yes, I do.

18 Q. When was the last time you saw him?

19 A. Metamorphosis in 2006.

20 Q. Is that the church camp?

21 A. Yes, it was.

22 Q. How old were you at that church camp in November
23 of 2006?

24 A. I was sixteen years old.

25 Q. Were you sleeping in a room with four boys total?

1 A. Yes, I was.

2 Q. And were you on the top or the bottom bunk?

3 A. I was on the top bunk.

4 Q. On the first night of camp, did anything happen in

5 the middle of the night that woke you up?

6 A. Yes.

7 Q. And now I know that it's been a little over six

8 years, so as you sit here today what do you recall happening?

9 A. I recall waking up in middle of the night to some

10 noise in the room, and I looked over and I see the man with a

11 flashlight shining around at the different bunks, and he

12 shined it at the top bunk which is more where I believe Collin

13 was sleeping, and he shined it at the bottom bunk and stayed

14 down at the bottom bunk a couple seconds, and he reached down

15 and Collin started moving, and that's when the man started to

16 leave, and he turned and that's when I saw it was Scott Moore,

17 and he turned around and left the room.

18 Q. Did you see Scott Moore in the room?

19 A. Yes.

20 Q. Would you point to him?

21 A. Right in the middle, that's Scott.

22 Q. The man that you saw in the your cabin that night,

23 November 2006?

24 A. Yes, it is.

25 Q. Do you remember the defendant Scott Moore talking

1 to you the next day about being in the room?

2 A. I believe he said he heard a noise in our room and
3 thought that we were talking, or that he might have thought
4 Tommy or Collin weren't in their beds?

5 Q. Do you remember talking to law enforcement shortly
6 thereafter about what had happened at the church camp?

7 A. Yes, I do.

8 Q. And did you make a -- do you remember making a
9 written statement writing down what happened?

10 A. Uh-huh, yes, I do.

11 (Whereupon, State's Exhibit No. 5 was
12 marked by the reporter for identification.)

13 Q. (By Ms. Jones) When you wrote that statement back
14 in 2006, was your memory fresh at the time?

15 A. Yes, it was very fresh.

16 Q. Was it clearer than it is perhaps today?

17 A. Yes, it was clearer.

18 Q. I'm going to show you what's been marked as
19 State's Exhibit 5. Do you recognize State's Exhibit No. 5?

20 A. Yes, I do recognize it. That is very much my
21 handwriting.

22 Q. Is this the statement that you made to law
23 enforcement about what happened in November 2006?

24 A. Yes, it is.

25 Q. Is that your signature at the bottom?

1 A. Yes, that is my signature.

2 Q. Did anyone tell you what to write in this

3 statement?

4 A. Nobody told me what to write.

5 Q. Did anyone ever tell you what to say had happened

6 in November 2006?

7 A. Nobody told me what to write or what to say.

8 MS. JONES: Your Honor, I move to admit

9 State's Exhibit 5.

10 MR. REGAN: Can we have a side bar, please?

11 THE COURT: You may.

12 (Whereupon, the following proceedings were

13 held at the bench outside the presence of the jury.)

14 MR. REGAN: Your Honor, would you please

15 note our objection to the admission of this exhibit on the

16 basis that it's cumulative to this man's testimony. It's

17 improper bolstering of his testimony before cross-examination.

18 THE COURT: Yes, I will note your

19 objection. It's overruled.

20 (Whereupon, the following proceedings were

21 held in the presence of the jury.)

22 THE COURT: State's Exhibit 5 is admitted.

23 (Whereupon, State's Exhibit No. 5 was

24 admitted into evidence.)

25 Q. (By Ms. Jones) Mr. Gooding, do you know Nick

1 Koch?

2 A. No, I do not.

3 Q. You never spoke to an individual named Nick Koch?

4 A. No, I have not.

5 MS. JONES: No further questions.

6 THE COURT: Cross-examination?

7 MR. REGAN: Thank you, Your Honor.

8 **CROSS-EXAMINATION**

9 **BY MR. REGAN:**

10 Q. Is the statement -- Ben, in the statement when all
11 this is fresh in your mind, isn't it true you told law
12 enforcement officers that the man in the room had a
13 long-sleeved shirt on?

14 A. Yes, that is what I said.

15 Q. And that he was tall?

16 A. Yes.

17 Q. How tall are you?

18 A. I'm 5'6", so I am fairly short, so I consider
19 anybody taller than me to be tall.

20 Q. I got it. Isn't it true you were not touched
21 inappropriately?

22 A. That is true.

23 Q. Is it true that you were aware of allegations of
24 something going wrong in the camp in 2005?

25 A. No, I was not aware.

1 Q. Were you told by your buddies to bring a
2 flashlight?

3 A. No, I was not.

4 Q. That night did you hear any -- you didn't say in
5 your statement that you heard elastic bands popping?

6 A. No, I did not.

7 Q. And you didn't say in your statement that you
8 heard a sleeping bag zipping or unzipping, do you?

9 A. No, I did not.

10 Q. And it's true that you didn't see whoever this
11 individual in your room was popping anybody's underwear or
12 unzipping somebody's sleeping bag?

13 A. I saw his back facing me.

14 Q. My question is, you didn't see him touching
15 anybody inappropriately or unzipping somebody's sleeping bag;
16 is that true?

17 A. That is true.

18 Q. It's also true you didn't see whoever this guy was
19 taking pictures with a flash bulb?

20 A. No, I did not.

21 Q. Isn't it also true that these rooms were very dark
22 at night?

23 A. That is correct.

24 Q. The cabins are built in the ground?

25 A. It depends on which cabin you were in.

1 Q. The one you were in?

2 A. I believe it was attached to side a little, but it

3 was not underground. There was a skylight in ceiling.

4 Q. Isn't it true that at night you can't hardly even

5 see your hand in front.

6 A. No, it is not true.

7 Q. Was there a lot of light?

8 A. There was enough to see the room and to go and see

9 the other bunk and to see the man clearly.

10 Q. Is it true that those cabins are noisy at night

11 because of the dehumidifier?

12 A. Not really.

13 Q. Do you recall learning that Scott Moore's

14 flashlight was broken that weekend?

15 A. No, I do not.

16 Q. Do you recall what time of night it was you heard

17 this noise of this individual in the room?

18 A. No. I do not know what time because I had no

19 watch or clock.

20 Q. Is it true it was after the lights were out?

21 A. That's correct.

22 Q. Do you think it was after midnight?

23 A. Like I said earlier, I do not know what time it

24 was.

25 Q. When it's lights out, do you guys talk a bit

1 before everybody falls asleep?

2 A. Typically.

3 Q. And it's also true that whoever this person was
4 coming into your room only came in once that you saw; true?

5 A. That, and then I did close the door and the door
6 was opened multiple times if I woke up later that night.

7 Q. You do not know how it got opened?

8 A. No.

9 Q. It could have been one of your buddies going to
10 the bathroom?

11 A. It could have.

12 Q. That's not uncommon at a campsite that kids get up
13 and go to the bathroom in the middle of the night? It's not
14 unusual?

15 A. It's not unusual.

16 Q. Did you know about anything going on with the
17 girls' camp across the way? Had there been a prank that they
18 played on you guys?

19 A. No, not that I remember.

20 Q. Had any boys ever gone into each others' rooms at
21 night to play a trick on you?

22 A. Not that weekend.

23 Q. In light of your answer, on another weekend?

24 A. During summer camp, yeah, but typically at
25 Metamorphosis we don't pull pranks because it's a much more

1 serious setting.

2 MR. REGAN: Thank you.

3 THE WITNESS: You're welcome.

4 THE COURT: Any redirect?

5 MS. JONES: No, Your Honor. May this
6 witness be excused?

7 THE COURT: May this witness be excused,
8 Mr. Regan?

9 MR. REGAN: Sure.

10 THE COURT: You may be excused. Thank you
11 for your testimony. You may step down. State's next witness.

12 MS. JONES: The State would call Kyle
13 Heslop.

14 **KYLE HESLOP,**
15 **having been duly sworn to tell the truth, the whole truth and**
16 **nothing but the truth, testified as follows:**

17 **DIRECT EXAMINATION**

18 **BY MS. JONES:**

19 Q. Please state your name?

20 A. Kyle Heslop.

21 Q. How old are you now, Mr. Heslop?

22 A. I'm twenty-two.

23 Q. What is your date of birth?

24 A. It's 11/23/1990.

25 Q. Mr. Heslop, do you know Scott Moore?

1 A. Yes, ma'am.

2 Q. Do you see him in the courtroom today?

3 A. Yes, ma'am.

4 Q. Would you be able to point to him and identify him

5 and generally what is he wearing?

6 A. A gray suit, blue tie, blue shirt.

7 Q. Thank you for identifying the defendant.

8 Kyle, I want to turn your attention to early November of

9 2005. How old would you have been then?

10 A. I would have been almost fourteen.

11 Q. Almost fifteen?

12 A. Yes, ma'am.

13 Q. Because your birthday is November 23rd. Do you

14 recall in early November 2005 going to church camp?

15 A. Yes, ma'am.

16 Q. What was the duration of that camp?

17 A. It was from Friday evening until Sunday afternoon.

18 Q. What was the defendant Mr. Moore's involvement in

19 the camp?

20 A. He was our cabin counselor.

21 Q. So did he sleep in your actual cabin?

22 A. Yes, ma'am.

23 Q. So he was actually in your room?

24 A. He was not in the room, but he was in the cabin.

25 Q. So we've got a cabin, and it's broken up into

1 different rooms?

2 A. Yes.

3 Q. How many people were in your room?

4 A. Three.

5 Q. Three total?

6 A. Yes.

7 Q. And were there bunk beds?

8 A. Yes, ma'am.

9 Q. Were you on the top or bottom bunk?

10 A. Top bunk.

11 Q. Do you recall whether or not the defendant, Mr.

12 Moore, had any policy regarding the doors?

13 A. Yes. He came in that night and said that he had

14 an open door policy. And he repeated it multiple times when

15 we tried to shut the door.

16 MR. REGAN: Judge, may we approach?

17 THE COURT: Yes.

18 (Whereupon, the following proceedings were

19 held at the bench outside the presence of the jury.)

20 MR. REGAN: Your Honor, will the Court note

21 my continuing objection to the 60-455 evidence through this

22 particular evidence?

23 THE COURT: Yes, I will note it.

24 MR. REGAN: On the grounds that the

25 probative value is outweighed by the prejudicial value.

1 THE COURT: The objection is noted and
2 overruled.

3 (Whereupon, the following proceedings were
4 held away from the bench in the presence of the jury.)

5 Q. (By Ms. Jones) So you had to leave the door open?

6 A. Yes, ma'am.

7 Q. The first night of camp would have been Friday
8 night. Did something happen in the middle of the night that
9 woke you up?

10 A. Yes.

11 Q. Now, it's been over seven years ago so I want you
12 to tell the Court and jury what you recall happening as you
13 sit here today, please.

14 A. I remember waking up to a flashlight, and there
15 was a man in the room and he was standing over the bed across
16 from me and kind of checking it out, just kind of going up and
17 down it. I was a little freaked out, and he turned to me. I
18 was still basically trying to pretend to be asleep. And when
19 I opened my eyes again, he was hovered over my bed with his
20 hand kind of towards my sleeping bag. He basically had the
21 side of it. And at that point I rolled over, and when I did,
22 he left the room pretty promptly.

23 Q. You kind of trailed off there. You said he left
24 the room?

25 A. Fairly promptly.